

be held to take a mere *power* so as to let in the statute to execute the uses in strict settlement, but will be construed to take the legal *estate* in fee, and the uses that are limited will stand as equitable interest.

Charge of debts. — So if copyholds be devised to trustees (who are also appointed executors of the testator) and the survivor of them, and the heirs of such survivor, charged with debts, and subject thereto upon trust to pay the rents to the testator's daughter for life, and after her death, the copyholds are devised by the testator directly to the heirs of the body of such tenant for life, here, as the charge of debts may require the fee simple to be in the trustees, they take the legal estate not only for the life of the tenant for the life but absolutely, and the issue in tail take only equitable estates (a).

[So where a testator directs his debts to be paid, or directs them to be paid by his executors, and devises real estate to trustees and their heirs upon trusts which do not exhaust the fee, and then devises the real estate after the determination of the preceding trusts directly to a third person, and appoints the trustees his executors, the trustees take the legal fee by virtue of the charge of debts (b).]

4. Present rule regulating devises to trustees. — Recent cases have established the following important qualification of the rule now under consideration, viz., that where an estate is in the first instance given to trustees and their heirs upon trusts which do not exhaust the equitable fee simple, and for which a particular estate short of the legal fee in the trustees would be sufficient, but discretionary powers are superadded which cannot be exercised by the trustees without arming them with the * means of passing the fee simple, there the trustees do not take a

reconciled with the rule we are discussing. The construction appears to have been, that, as the limitation to the trustees and their heirs was expressly limited to the period until *A. attained twenty-one*, the estate was intended to be a chattel interest only, and the charges were to be raised either by sale or mortgage of that

chattel interest, or out of the inheritance by virtue of an implied power.

(a) *Creaton v. Creaton*, 3 Sm. & G. 386.

[(b) *Creaton v. Creaton*, 3 Sm. & G. 386; *Re Tanqueray-Willaume & Landau*, 20 Ch. D. 465; *Marshall v. Gingell*, 21 Ch. D. 790; *Spence v. Spence*, 12 C. B. N. S. 199.]